

did not provide a copy of that order nor provide the date upon which it was entered. Given the voluminous post-judgment filings, the Court has yet to locate this order.

The Court denies Plaintiff's request for sanctions included in the opposition. The Court also denies Plaintiff's request that she be given the opportunity to buy the property through a special process where she buys out Defendants. Plaintiff is free, however, to bid on the property when it is listed for sale on the open market.

Additional information is necessary regarding the claimed monthly payments and the request for an order requiring Plaintiff to vacate the property. Therefore, this matter is continued for further briefing as follows:

The Court is inclined to reaffirm the prior orders regarding sale of the property to the highest bidder, instructions for the elisor to sign the necessary documents and instructions regarding escrow of funds from the sale. Defendants shall provide a proposed order that includes all the terms requested.

Defendants shall provide copies of all orders that address the post-judgment monthly payments by Plaintiff. If Defendants have additional evidence on the need for the property to be vacant in order for it to be sold, they may provide that evidence.

Defendants proposed order and supplemental filings shall be filed and served by July 10, 2026.

Plaintiff may file and serve a response by July 24, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-00486
CASE NAME: EMAN MUTHANNA VS. OPPORTUNITY HOUSING GROUP, INC.
***HEARING ON MOTION FOR DISCOVERY TO QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS**
FILED BY: ESTATE OF ADEEP MUTHANNA
TENTATIVE RULING:

Before the court is Plaintiff's motion to quash or in the alternative modify the deposition subpoenas for production of business records issued on February 18, 2026 to T-Mobile USA, INC. (T-Mobile), American Medical Response, Inc., Contra

Costa Fire Protection District, Pleasant Hill Police Department and the Contra Costa County Office of the Sheriff.

The Defendants assert that the parties have resolved the issues involving American Medical Response, Inc., Contra Costa Fire Protection District, Pleasant Hill Police Department and the Contra Costa County Office of the Sheriff, and only the issue of cell phone records remains for the court's adjudication. (Defendant's Opposition to Motion to Quash (Opposition), filed 6/12/16 at 2: 7-16; Declaration of Mark J. D'Argento (D'Argento Decl.), Ex. 4.) Plaintiff's Reply brief did not mention the emergency response, fire, or law enforcement agency issues. Plaintiff's Reply to Defendant's Opposition filed June 18, 2026 (Plaintiff's Reply.) The court concludes from that omission that the Defendants' assertion is correct that the only issues remaining before the court relate to a subpoena the Defendants issued on February 18, 2026 to T-Mobile (Subpoena) for records from the cell phone of Adeep Muthanna (Decedent).

Plaintiffs are the estate and surviving parents and siblings of Adeep Muthanna, who died on February 18, 2023 by "apparent carbon monoxide poisoning." (Opposition at 1:22-23; Plaintiff's Notice of Motion and Motion to Quash, (Motion) at 3: 3-4.) The court does not take these allegations to be true but considers them only to understand the factual context defining the scope of the discovery dispute.

The original scope of the Subpoena's request was, "Any and all cell phone records from 2/18/22 to the present, including but not limited to call logs, text logs, and data usage logs pertaining to cell phone #925-219-4255." (Opposition, at 2: 18-19.) This request sought cell phone records from a time period beginning one year prior to the decedent's death on February 18, 2023. During the meet and confer process Defendants agreed to reduce the temporal scope of the Subpoena to 30 days prior to the incident. (Opposition, at 2: 23-25.) Plaintiffs object to the reduced temporal length of 30 days prior to the incident. (Motion at 3: 6-7.)

Plaintiffs request that the subpoena be quashed in its entirety, and in the alternative a protective order, in camera review before disclosure to counsel, limiting the scope of the document request to call-log records only, excluding text-message logs, meta data and data usage information, and to limit the time period to February 17-28, 2023. (Reply, at 5: 11-21.)

Plaintiffs misapprehend the broad nature of the Discovery Act. Section 2017.010 of the Code of Civil Procedure (CCP) provides in relevant part:

Unless otherwise limited by order of the court in accordance

with this title, any party may obtain discovery regarding any matter, not privileged, that *is relevant to the subject matter* involved in the pending action or to the determination of any motion made in that action, *if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence*. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.

CCP § 2017.010 (emphasis added).

The Discovery Act provides that the court “shall limit the scope of discovery” if it determines the burden, expense or intrusiveness of that discovery “clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” CCP § 2017.020(a). Here, there is no burden to the Plaintiffs. This is a subpoena to a third party. The Plaintiffs do not have to conduct a search of anything. There is little to no expense to having a third party respond to a subpoena. The Plaintiffs have not asserted any objection based on intrusiveness.

Plaintiffs’ main argument is Defendant has not made a “showing” to warrant discovery. They argue, “Defendants have not articulated any defense theory under which the decedent’s text communications in the month preceding the incident bear on whether the garage door malfunctioned or whether carbon monoxide accumulated. No comparative negligence theory has been identified. No suicide theory has been pled. No distraction defense has been articulated. There is no showing that a 30 day sweep of private communications would materially advance any cognizable defense.” (Motion, at 4: 13-21.)

Plaintiffs’ argument that such a “showing” is required is overly restrictive. The statutory standard is “matter, not privileged, that *is relevant to the subject matter* involved in the pending action or to the determination of any motion made in that action, *if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence*.” CCP § 2017.01, emphasis added.

To begin with, the Plaintiffs have not identified a privilege. (Motion, at 4-5.)

It also appears that Plaintiffs may not assert a privacy right to the decedent’s cell phone contents on behalf of the decedent. The court in *People v. Clymer* (2024) 107 Cal. App. 5th 131, 141 recognized, “It is well settled that the right of privacy is

purely a personal one; it cannot be asserted by anyone other than the person whose privacy has been invaded' [Citations omitted.] Further, the right does not survive but dies with the person." (finding no 4th Amendment violation in warrantless search of a cell phone belonging to a deceased person). Plaintiffs' attempts to distinguish *Clymer* are unsupported by legal authority.

The Defendants assert that "There is no explanation for how or why the [garage] door would malfunction by closing after the [Decedent's] car entered, or why it could not be manually opened by the Decedent using the operational override lever, or why Decedent did not simply have [sic] turned his car engine off if the door had indeed become stuck. Moreover, the Defendants have presented evidence in discovery that supports the operability of the garage door." (Opposition, at 3: 16-23.)

The court finds, in this factual context, that the Defendant's requested discovery is reasonably calculated to lead to the discovery of admissible evidence. The Defendants do not have to "plead" a suicide theory in order to obtain this discovery. The Decedent's activities, plans, thoughts and intent before and at the time of death are directly relevant to the subject matter of this litigation. Cell phone records from the 30 day period prior to the decedent's death are reasonably calculated to lead the discovery of admissible evidence. If the garage door were truly "stuck" as Plaintiffs assert, an examination of phone records is reasonably calculated to admissible evidence – for example by way of texts or phone calls from the Decedent seeking help with the garage door. If the door were not stuck, phone records might lead to admissible evidence such as suicide related messages to others or diary entries, research regarding suicide-related or death-related topics, farewell messages, receipt of threatening messages from third parties, receipt of messages concerning future events that were unsavory, or to be feared. Alternatively, information pointing away from a suicidal intent, such as messages regarding the Decedent's plans for the future are also reasonably calculated to lead to the discovery of admissible evidence. Whether the garage door malfunctioned or not, the discovery of the decedent's cell phone information for a 30 day period prior to the death is reasonably calculated to lead to the discovery of admissible evidence.

The Plaintiff's motion to quash the Subpoena is **denied**. T-Mobile must produce, "Any and all cell phone records from **January 19, 2023 to February 18, 2023**, including but not limited to call logs, text logs, and data usage logs pertaining to cell phone #925-219-4255."

The parties are directed to submit a Stipulated Protective Order governing the

production of all documents in this litigation.

Unless and until the parties stipulate to a Protective Order, the court orders that all documents produced pursuant to the Subpoena to T-Mobile may be used only for the purposes of this litigation, and may not be disclosed to any third party for any purpose, absent further court order.

Plaintiff's request for sanctions is denied.

Issue Conferences

17. 10:00 AM CASE NUMBER: C23-01814
CASE NAME: CIRCLE PIZZA, LLC VS. ADRIANA PENA
HEARING IN RE: PROVE UP HEARING. PARTIES MAY APPEAR VIA ZOOM.
FILED BY:
TENTATIVE RULING:

Parties to appear.

**Law & Motion
Add On**

18. 9:00 AM CASE NUMBER: C25-03235
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC.
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY: LATIFI, ABDUL
TENTATIVE RULING:

The unopposed motion of attorney Gaynee Ghandilyan (SBN 327818) and Bibiyan Law Group, P.C. to be relieved as counsel for the Plaintiff Abdul Latifi is **granted**.

The court will sign the proposed order submitted on Judicial Council form MC-053 lodged with the Court on April 13, 2026 and file it.

The order relieving counsel will become effective upon attorney Ghandilyan's filing of the proof of service of the signed order upon Plaintiff.